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**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125Q0222**

[x] ORIGINAL

ADDENDUM (attach copy of original J&A for add-ons or revisions)

- 1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.**
- 2. The action being approved is the acquisition of supplies on other than a full and open competition basis.**
- 3. The supplies required to meet the using activity's needs are described as follows:**

NSN	NOMENCLATURE	QTY	ESTIMATED VALUE	OPTION % / QTY	ESTIMATED TOTAL VALUE	AMC / AMSC	QCC
5340-01-512-0408	BUMPER	184	[REDACTED]	N/A	[REDACTED]	3D	CAA

End item, weapon system, or class of item: This solicitation is for a DLA Direct Requirement, PR 7008765124. Item noun name is BUMPER and has HELICOPTER, UH-GOA, UH-GOL, UH-GOV weapon system assigned.

Estimated value: \$ [REDACTED]

Estimated total value: \$ [REDACTED]

- 4. The statutory authority permitting other than full and open competition is:**
 - 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
- 5. If restricted to the only source(s) of supply, include source(s) and CAGE code:**
 - Cage (08484) BREEZE-EASTERN LLC** is uniquely qualified because it is the only known source with the data or rights to the data necessary to manufacture this item.
 - P/N: BL-15975-3**

The use of the authority cited below:

AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

AMSC D. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, [REDACTED], certified the technical certification on 9.20.2024

~~Controlled by: DLA Land and Maritime~~

~~Controlled by: [FLSCD]~~

~~CUI Category: PROCURE/SSI~~

~~Distribution/Dissemination Control: FED ONLY~~

~~POC:~~ [REDACTED]

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This item is an AMC/AMSC of 3/D. This item supports the HELICOPTER, UH-GOA, UH-GOL, UH-GOV weapon system, is not a critical application item, and is not a critical safety item: **Cage (08484) BREEZE-EASTERN LLC** is the only approved source manufacturer. The Government does not own or possess the data or drawings for full and open competition. The approved source is the only source known to possess the required drawings. There are not currently any 339's out to the Engineering Support Activity (ESA). Technical Data Certification is attached.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

The acquisition was synopsized on 10.28.2024 for 15 days.

Dealers of the manufacturers will be solicited.

Solicitation will be posted to DIBBS.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

Past procurement history will be reviewed, and a PPI price analysis will be performed. Other than cost and pricing data may be requested and analyzed. Additionally, discussions may be held with offerors, if needed, to determine price fair and reasonable.

This is a definite quantity firm fixed price contract for a total quantity of **184** each.

This item is being procured on an All or None basis.

Based upon the above techniques, the Contracting Officer hereby determines that the anticipated cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

Market research consisted of review of past procurements, market surveys received from interested parties, and internet sources.

Previous history:

Smart Number (PIIN)	Source Type	TIC	Vendor CAGE Code	Vendor Name	Quantity	Unit	Net Price	Curr	Per	Award Date	Incolterms	Prc Reas	SAP PO No.	Wgt Avg	Surplus Material
SPE7L123P9135	A	02BE8	TRIMAN INDUSTRIES INC	160 000	EA	4875 00000	USD	1	09/07/2023	1	BZ	8510107282	N		
SPE7L122C0041	A	02BE8	TRIMAN INDUSTRIES INC	90 000	EA	4368 25000	USD	1	07/11/2022		BG	8509204392	N		
SPE5EK21C0010	A	02BE8	TRIMAN INDUSTRIES INC	100 000	EA	4044 84000	USD	1	07/27/2021		BG	8508379808	N		
SPE5EK21C0002	A	02BE8	TRIMAN INDUSTRIES INC	144 000	EA	3790 34000	USD	1	10/15/2020		BG	8507700973	N		
SPE5EK20P0325	A	02BE8	TRIMAN INDUSTRIES INC	88 000	EA	3901 00000	USD	1	12/04/2019	1	BG	8506971510	N		
SPE5EK19P1840	B	02BE8	TRIMAN INDUSTRIES INC	180 000	EA	3815 00000	USD	1	05/18/2019	1	BG	8506544246	N		
SPE5EK19P0280	B	02BE8	TRIMAN INDUSTRIES INC	170 000	EA	3774 00000	USD	1	11/05/2018	1	BI	8506027666	N		
SPE5EK18P1863	B	02BE8	TRIMAN INDUSTRIES INC	60 000	EA	3570 00000	USD	1	06/09/2018	1	BG	8505579774	N		
SPE5EK18P0122P00002	B	02BE8	TRIMAN INDUSTRIES INC	123 000	EA	3410 00000	USD	1	10/18/2017	1	BI	8504847428	X	N	
SPE5EK17P1855P00001	B	02BE8	TRIMAN INDUSTRIES INC	126 000	EA	3187 00000	USD	1	07/29/2017		BG	8504616072	X	N	

The PO History shows multiple prior awards. In each previous award TRIMANN INDUSTRIES INC supplied the item from BREEZE-EASTERN.

The Sources Sought was opened on 9.17.2024 and closed on 9.24.2024 on SAM.gov. No responses received.

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Market Survey [10 U.S.C. 3204(e)(2)(D)]

A market survey was conducted on **9.17.2024**

Techniques used to conduct survey: SAM.gov and email correspondence

Types of information requested: Size of business, type of business, commerciality, price listed/stock inventory status, willingness to offer proposal, delivery schedule, quantity sensitivity,

Total number of vendors contacted: 2

Cage (08484) BREEZE-EASTERN LLC

Cage (0ZBE8) TRIMAN INDUSTRIES LLC

Names of unresponsive vendors:

Cage (08484) BREEZE-EASTERN LLC was emailed on 9/17/2024 with market survey. No response was received.

Names of vendors and summary of information from responses:

Cage (0ZBE8) TRIMAN INDUSTRIES

TRIMANN INDUSTRIES INC is a dealer for BREEZE-EASTERN

Large Business Dealer

Item is Commercial

[REDACTED]
[REDACTED]
[REDACTED]

Commercial determination:

Cage (0ZBE8) TRIMAN INDUSTRIES stated on their market survey that part number BL-15975-3 is a commercial item and are able to provide copies of recent Invoices. The COTS field, generated by the Product Specialist, in the Product Master in SRM, was left blank. A Google search found no listing of sales to the private sector supporting the commerciality of this item. Army Contracting Command, Contracting Office, [REDACTED] determined this item to be commercial. Product Specialist was notified that this item would be classified as "Commercial of A Type" and not COTS. The Contracting Officer determines that this item is commercial of a type, thus FAR 13.5 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

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- Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: (If none, so state)

- **Cage (0ZBE8) TRIMAN INDUSTRIES LLC**

11. The following actions are being taken to identify additional sources:

- Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- This solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items.

12. DFARS PGI (Procedures, Guidance, and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. (Contract #: SPE7L122C0041 Award Date: 7/11/2022)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.
D.1076026684

Digitally signed by
TUBBS.JOHN.D.1076026684
Date: 2024.12.09 11:52:38
-05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.125
1897324

Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2025.01.10 14:00:59 -05'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

DLA Land & Maritime Justification for Other Than Full & Open Competition
(November 2021)
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☐ Up to \$750,000	Contracting Officer
☒ \$750,000 to \$15,000,000	Competition Advocate

Attachment(s):

Technical Certification by the Product Specialist
Previous J&A Contract #: SPE7L122C0041 Award Date: 7/11/2022
Email attachment from the Army-Clarifying commercial item